be recovered in a single action. (*Id.* at 963.) The *Anderson* court reasoned: "The punitive damages were based on conduct underlying the fraud/CLRA causes of action and took place before the sale. The civil penalty was based on defendant's post-sale failure to comply with its Song-Beverly Act obligations to replace the vehicle or make restitution when reasonable attempts to repair had failed." (*Id.*) As discussed above, Plaintiff's fraud claim is not subject to demurrer. Accordingly, the Court denies GM's motion to strike the prayer for punitive damages.

2.

CASE #	CASE NAME	HEARING NAME
CVME2405983	MIRANDA VS GENERAL MOTORS	MOTION TO STRIKE COMPLAINT ON 1ST AMENDED COMPLAINT FOR BREACH OF CONTRACT/WARRANTY OF MIRANDA

Tentative Ruling: See Tentative for Demurrer

3.

CASE #	CASE NAME	HEARING NAME
CVME2503835	THE TRIM CLINICS VS LOS ANGELES INVESTMENTS	MOTION TO COMPEL PRODUCTION OF DOCUMENTS BY THE TRIM CLINICS

Tentative Ruling: Grant

Defendant to identify to Plaintiff which of the documents produced are responsive to each of the RFPs.

Sanctions are awarded in the reduced but reasonable amount of $410 ($350/hour x 1 hour + $60 filing fee).

This is a breach of lease action. On April 10, 2025, Plaintiff The Trim Clinics, LLC ("Plaintiff"), along with individual Plaintiffs Lelani Vidal, and Darryl Walker filed a Complaint against Defendant Los Angeles Investments, LLC ("Defendant") for: (1) breach of contract; (2) breach of the covenant of good faith and fair dealing; (3) breach of the implied covenant of quiet enjoyment; (4) negligent misrepresentation; and (5) rescission of lease. In the Complaint, Plaintiff alleges that it operates as a weight loss and body contouring clinic, and on April 17, 2024, it entered a lease of the property located at 31285 Temecula Parkway, Suite C8-260, Temecula, California (the "Property") with Defendant. (Complaint at ¶¶ 3, 7.) Plaintiff almost immediately encountered problems with the Property, including the elevator and HVAC system not working, the roof leaking, and ceiling panels collapsing and soaking the carpet. (Complaint at ¶¶ 9, 11-12.) It immediately notified Defendant, but the problems remain unresolved. (Complaint at ¶¶ 9-14.)

On May 1, 2025, Plaintiff served initial discovery, including requests for production of documents, set one ("RFPs"). Defendant served responses on April 13, 2026, after its default was set aside, agreeing to provide documents responsive to RFP nos. 1, 4, 7, and 8. As of the filing of this motion, no documents have been produced by Defendant.

Plaintiff now moves to compel Defendant to comply with its agreement to produce documents responsive to RFP nos. 1, 4, 7, and 8, and for sanctions in the amount of $1,635.

In opposition, Defendant argues that it has now produced all responsive documents, so the motion is moot and there is no basis for sanctions.

In reply, Plaintiff argues that the documents produced by Defendant were produced along with Defendant's responses to Plaintiff's 2nd set of RFPs, so it is unclear if they are intended to respond to the original RFPs or the 2nd set. It also argues that Defendant should be ordered to label its document production to identify which requests the documents are responsive to in compliance with C.C.P. § 2031.280. Finally, it argues sanctions are appropriate.

"If a party filing a response to a demand for inspection, copying, testing, or sampling . . . thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance." (C.C.P. § 2031.320(a).) There is no meet and confer requirement.[3] (*Id.*)

Here, Plaintiff moves for an order compelling Defendant to comply with its statement of compliance provided in its April 13, 2026 responses to RFP nos. 1, 4, 7, and 8. In the RFPs at

[3] Even though it is not required, Plaintiff here presented evidence that he attempted to meet and confer before filing this motion. (See, Decl. of Marty E. Zemming at ¶ 2, Ex. 3.)

issue, Plaintiff requested: all documents identified in Defendant's responses to form interrogatories; all documents showing repairs to the elevator at the Property in the two years prior to the lease; evidence it disclosed pre-existing problems with the Property prior to the lease; and all documents related to repairs made at the Property in the last three years. (Decl. of Marty E. Zemming ["Zemming Decl."], Ex. 1, nos. 1, 4, 7, 8.) In response to these RFPs, Defendant stated "Responding party shall comply with this request by producing any and all documents in its possession, custody and/or control." (Zemming Decl., Ex. 2, nos. 1, 4, 7, 8.)

There is no dispute that Defendant did not timely produce responsive documents as it agreed. However, Defendant presents evidence that it produced all documents responsive to the RFPs on June 5, 2026, approximately a week after this motion was filed, and almost two months after it agreed to produce documents. (Decl. of Geoffrey G. Melkonian at ¶¶ 5-8.) While this would seem to show compliance, Plaintiff presents evidence that the documents produced were produced along with Defendant's responses to Plaintiff's 2nd set of RFPs, and there is no indication as to which RFPs the documents are responsive to. (Supp. Decl. of Marty E. Zemming at ¶ 1.)

Pursuant to C.C.P. § 2031.280(a), "[a]ny documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling <u>shall be identified with the specific request number to which the documents respond</u>." (*Ibid.* [emphasis added].) There is no evidence Defendant complied with this requirement. Accordingly, the motion should be granted, and Defendant should be ordered to identify to Plaintiff which documents produced are responsive to each of the RFPs, in either set one or set two.

Additionally, the documents were produced only after this motion was filed, indicating the motion was necessary to ensure Defendant's compliance with its agreement to produce responsive documents. Therefore, sanctions are appropriate, though the amount requested is excessive.

Plaintiffs should be awarded sanctions on the reduced but reasonable amount of $410 ($350/hour x 1 hour + $60 filing fee).

4.

CASE #	CASE NAME	HEARING NAME
CVME2504177	CASTANEDA VS WALMART	DEMURRER ON COMPLAINT FOR WRONGFUL TERMINATION OF LETICIA VERA CASTANEDA

Tentative Ruling:

SUSTAIN, without leave to amend, as to the 5th and 8th causes of action (based on the parties' agreement).

SUSTAIN, with leave to amend, as to the 4th cause of action.

This is an employment law wrongful termination action filed by Plaintiff Leticia Castaneda April 21, 2025 against Defendants Walmart, Inc. Wal-Mart Associates, Inc. and Paul Doe alleging 8 causes of action for 1) disability discrimination, 2) failure to provide reasonable accommodation, 3) failure to engage in the interactive process, 4) harassment/hostile work environment, 5) failure to prevent harassment/hostile work environment, 6) retaliation, 7) failure to permit use of sick leave, and 8) wrongful termination in violation of public policy. The Walmart Defendants filed their Answer then removed the matter to Federal Court.

Then on December 5, 2025, Rodel Sulangi was named as Paul Doe While the action was in Federal Court. Sulangi filed a demurrer to the Complaint on January 21, 2026, while the matter was still pending in Federal Court.

On March 11, 2026, Plaintiff attempted to file a First Amended Complaint, which was properly rejected by the court as the Walmart Defendants had filed their Anwer to the Complaint cutting off Plaintiff's automatic right to file a first amended complaint. (CCP §472(a).) Accordingly, Plaintiff requires leave of court to file an amended complaint.

On March 24, 2026, the court ordered Sulangi to properly meet and confer with Castaneda, and thereafter either vacate the hearing, or file a declaration with the court regarding the meet and